

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
LANCELOT MORRISON

Index No.
Date Purchased:

Plaintiff(s),
-against-

SUMMONS

Plaintiff Designates Kings
County as Place of
Trial

THE CITY OF NEW YORK, NEW YORK STATE
POLICE DEPARTMENT, POLICE OFFICER (P.O.)
TYLER ANGELO, Shield Number 21443 (in his
individual and official capacity), P.O. JOHN A.
PLUMITALLA, Shield# 16755 (in his individual and official capacity),
P.O. SEAN KEEGAN Shield # 4995 (in his individual and official
capacity) POLICE OFFICER JOHN and JANE DOES #1-6
and ASSISTANT DISTRICT ATTORNEY
NATALIE RIOS, ASSISTANT DISTRICT ATTORNEY
JENNIFER DARIN, and ASSISTANT DISTRICT
ATTORNEY COREY JONES.

Defendant(s).

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The Basis of Venue is
Plaintiff's Residence

Plaintiff Resides at
372 New Jersey Ave #2
Brooklyn, NY 11207

To The Above Named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
December 27, 2023

_____/S/_____
Rehan Nazrali Esq
Attorneys for Plaintiff(s)
299 Broadway, 17th Fl
New York, NY 10007
(646) 331-9378

Defendants' Addresses:

The City of New York
Corporation Counsel
100 Church Street
New York, N.Y. 10007

New York City Police Department
One Police Plaza
New York, N.Y. 10038

P.O. Tyler Angelo
Shield # No 21443
75th Precinct,
1000 Sutter Ave
Brooklyn, NY 11208

P.O. John Plumitalla
Shield #16755
75th Precinct,
1000 Sutter Ave
Brooklyn, NY 11208

P.O. Sean Keegan
Shield #4995
69th Precinct,
9720 Foster Ave
Brooklyn, NY 11236

Police Officers John and Jane Does 1-6
One Police Plaza
New York, N.Y. 10038

Kings County District Attorney's Office
ADA NATALIE RIOS
ADA JENNIFER DARIN
ADA COREY JONES
350 Jay Street
Brooklyn, NY 11201

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
LANCELOT MORRISON

Plaintiff,

VERIFIED COMPLAINT
Index No.:

-against-

THE CITY OF NEW YORK, NEW YORK STATE
POLICE DEPARTMENT, POLICE OFFICER (P.O.)
TYLER ANGELO, Shield Number 21443 (in his
individual and official capacity), P.O. JOHN A.
PLUMITALLA, Shield# 16755 (in his individual and official capacity),
P.O. SEAN KEEGAN Shield # 4995 (in his individual and official
capacity) POLICE OFFICER JOHN and JANE DOES #1-6
and ASSISTANT DISTRICT ATTORNEY
NATALIE RIOS, ASSISTANT DISTRICT ATTORNEY
JENNIFER DARIN, and ASSISTANT DISTRICT
ATTORNEY COREY JONES.

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Plaintiff, LANCELOT MORRISON by his attorney, REHAN NAZRALI, ESQ., as and for his
verified complaint herein, respectfully set forth and allege, upon information and belief, as
follows:

PARTIES

1. That at all times hereinafter mentioned, the plaintiff, LANCELOT MORRISON was and still is a resident of the County of Kings, City and State of New York.
2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, THE NEW YORK CITY POLICE DEPARTMENT (NYPD), was and still is an agency and/or department of the City of

New York, authorized and existing under and by virtue of the laws of the City and State of New York.

4. At all relevant times hereto defendant NYPD, pursuant to the laws of the City and State of New York establishing its existence and authorizing its operations, operated, controlled, directed, managed and supervised its employees and particular its Police Officers thereto.
5. That at all times hereinafter mentioned the defendant, THE KINGS COUNTY DISTRICT ATTORNEY'S OFFICE (KCDAO), was and still is an agency and/or department of the City of New York, authorized and existing under and by virtue of the laws of the City and State of New York.
6. At all relevant times hereto defendant KCDAO, pursuant to the laws of the City and State of New York establishing its existence and authorizing its operations, operated, controlled, directed, managed and supervised its employees and particularly its Assistant District Attorneys thereto.
7. At all relevant times hereinafter, the defendant CITY its agents, servants and employees operated, maintained and controlled the KCDAO, and all the ADA's thereof, in particular defendant ASSISTANT DISTRICT ATTORNEY NATALIE RIOS, ASSISTANT DISTRICT ATTORNEY JENNIFER DARIN, and ASSISTANT DISTRICT ATTORNEY COREY JONES.
8. At all relevant times hereinafter, the defendant CITY, its agents, servants and employees operated, maintained and controlled the NYPD, and all the police officers thereof, in particular defendant TYLER ANGELO, Shield Number 21443 (in his individual and official capacity), P.O. JOHN PLUMITALLA Shield# 16755 (in his individual and official capacity) and P.O. SEAN KEEGAN Shield# 4995 (in his individual and official capacity) as Police Officers in the 75th Precinct.

9. At all relevant times hereinafter, the defendant CITY, its agents, servants and employees operated, maintained and controlled the NYPD, and all the police officers thereof, in particular defendant POLICE OFFICER JOHN DOES #1-6. as Police Officers in the 75th Precinct.

CONDITIONS PRECEDENT

10. That on or about June 30, 2023 Plaintiff Notice of Claim was duly filed with the Comptroller's office of the City of New York and with the NYPD.
11. That said Notice of Claim was filed within 90 days after the causes of action had accrued and as such more than thirty (30) days have elapsed since the filing of said Notice and this matter has not been settled or otherwise disposed of.
12. That the Plaintiff on December 20, 2023 has submitted to an inquiry concerning the justness of his claims as provided by section 50-H of the General Municipal Law by attending a 50-H hearing via Zoom organized and held by outside counsel for the CITY, Russo & Gould LLP
Mailing Address: 33 Whitehall St, 16th Fl, NY, NY 10004.
13. That his State action is being commenced within one (1) year and ninety (90) days of the occurrence complained of herein.

FACTUAL ALLEGATIONS

14. On January 1st, 2021, at approximately 2:45 A.M., thereof, Lancelot Morrison (hereinafter "the Claimant") was on the street near the intersection of Sutter Avenue and New Jersey Avenue in the State of New York, County of Kings, City of New York, when an unmarked Police vehicle operated by the P.O. defendants turned on their police lights.
15. P.O. Angelo, P.O. Plumitallo, and P.O. Keegan were sitting in the unmarked vehicle and actively observing about 20 people when they abruptly flashed their police lights.

16. Upon the defendants flashing their lights, the Claimant began to walk in the opposite direction of the unmarked vehicle and pulled out his cell-phone.
17. The defendant officer Angelo saw the Claimant turn and walk away from the vehicle in a zipped up black puffy jacket. The unmarked vehicle was approximately 10 ft from the Claimant.
18. The Claimant proceeded to walk away from the police vehicle and in doing so cut through parked cars on the sidewalk.
19. Defendant officers Angelo and Plumitallo drove their vehicle onto the sidewalk bringing same within feet of plaintiff, exited the vehicle, ran up to him weapons drawn, demanded that he stop moving and then commenced to frisk the Claimant without any probable cause that a crime was in commission nor had been committed.
20. Defendant officer Angelo frisked the Claimant first by checking the Claimants pockets and pants, then further by un-zipping the Claimants jackets and patting down the breast area.
21. At this time, P.O. Angelo discovered a hard object in the Claimants left breast jacket pocket.
22. P.O. Angelo then held the Claimant, against his will, while P.O. Keegan recovered a firearm from the Claimants puffy jacket inside breast pocket.
23. Claimant was then taken to the 75th Precinct, where the Evidence Collection Team (ECT) dusted the firearm for fingerprints or DNA, and additionally took photographs.
24. While the Claimant was being processed by P.O. Plumitallo, the Claimant made a statement to the effect of, "I was gonna trade that into the precinct."
25. The Claimant made this statement to P.O. Plumitallo prior to being advised of his *Miranda* rights.

26. P.O. Angelo testified that he saw the Claimant with an L-shaped bulge, however, in a decision and order dated February 28, 2023, the Hon. Evelyn J. Laporte J.S.C., stated that the court does not credit this portion of P.O. Angelo's testimony. The court concluded through bodycam footage provided by Angelo that he would be unable to discern a L-shaped bulge through the Plaintiff's zipped up, black, puffy jacket.
27. Further, her decision the Hon. Evelyn J. Laporte J.S.C., concluded that even if officer Angelo noticed a bulge his investigation was more intrusive than necessary. P.O. Angelo could have stopped and asked the defendant questions upon the noticing of a bulge, but may not frisk the claimant on such notice.
28. P.O. Angelo did not have the requisite reasonable suspicion that the Claimant was participating in any unlawful activity, nor that the Claimant possessed a firearm.
29. That Plaintiff was forced to attend over 29 Court appearances, where he missed work and had to pay for an attorney to represent him.
30. That on or about April 6th 2023, all charges against Claimant were dismissed.
31. That the above described conduct that took place on January 1, 2023 through to April 6, 2023 at the subject times and place by the defendant CITY through and/or by the actions of its agents, servants and employees, namely NYPD police officer TYLER ANGELO, Shield Number 21443 (in his individual and official capacity), P.O. JOHN PLUMITALLA (in his individual and official capacity) and P.O. SEAN KEEGAN, (in his individual and official capacity) constitutes, variously, false arrest, false imprisonment and malicious prosecution and generally conduct that was unprovoked, unlawful, unconstitutional and which did cause harmful and/or offensive bodily contact and did deprive him of liberty to the person and that this conduct upon claimant was carried out by said NYPD officers who are servants, agents and/or employees of the defendant CITY

32. That as a result of the aforementioned wrongful, negligent, careless, and reckless conduct of the aforesaid Defendants, Plaintiff sustained the injuries herein alleged.
33. That the Plaintiff has suffered a severe shock to his nervous systems, and has become emotionally distressed thereto. That the Plaintiff's general health has been damaged and the functions of his body has been greatly impaired. That as a result of Defendants' intentional acts and negligence, the Plaintiff has been damaged in an amount to be determined after trial.

AS AND FOR A FIRST CAUSE OF ACTION
FOR FALSE ARREST AND FALSE IMPRISONMENT UNDER 42 USC §1983
AS AGAINST DEFENDANTS CITY, POLICE OFFICERS ANGELO, PLUMITALLO and
KEEGAN AND POLICE OFFICERS JOHN DOES# 1-6

34. The Plaintiff hereby incorporates by reference each and every preceding paragraphs 1 through 33 of this civil complaint as though fully plead and re-alleged in their entirety below.
35. That the Fourth and Fourteenth Amendment of the Constitution of the United States protects the right to be free from unreasonable searches and seizures; provides that warrants shall issue only upon probable cause, supported by oath or affirmation.
36. That the above described arrest and consequential imprisonment that began on January 1, 2021 at the subject times and place by the defendants CITY and NYPD through and/or by the actions of their agents, servants and employees, namely Police Officer ANGELO, PLUMITALLO and KEEGAN and POLICE OFFICERS JOHN DOES# 1-6 constitutes false arrest and false imprisonment on the aforementioned charges without probable cause in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
37. That at the time of Plaintiff's arrest, Defendants Police Officer ANGELO, PLUMITALLO and KEEGAN and POLICE OFFICERS JOHN DOES# 1-6 acted under color of law and were

exercising their responsibilities pursuant to state law and under the directives of the Defendants CITY and NYPD.

38. That at the time of Plaintiff's arrest, the Defendants CITY and NYPD through and/or by the actions of its agents, servants and employees, namely Defendants Defendants Police Officer ANGELO, PLUMITALLO and KEEGAN and POLICE OFFICERS JOHN DOES# 1-6 lacked probable cause: (a) to believe that Plaintiff had committed a crime of resisting arrest; (b) to believe that the Plaintiff was about to commit the crime of resisting arrest; and (c) to commence a criminal prosecution against Plaintiff on the false criminal charges described above.
39. That at the time of Plaintiff's arrest, the Defendants CITY and NYPD through and/or by the actions of their agents, servants and employees, namely Defendants Police Officers ANGELO, PLUMITALLO and KEEGAN and POLICE OFFICERS JOHN DOES# 1-6 acted with malice, hatred and structural racial animus towards Plaintiff as the motivation for their fabricated and false charges including but not limited to Criminal Possession of a Weapon in the Second Degree (P.L. 265.03[3]), Criminal Possession of a Weapon in the Third Degree (P.L. 265.02[1]), Criminal Possession of a Weapon in the Fourth Degree (P.L. 265.01[1]), and Criminal Possession of a Firearm (P.L. 265.01-B[1]).
40. That as a result of the false charges brought against Plaintiff, he was taken into police custody and subjected to additional false grounds for incarceration.
41. That at all relevant times hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY and NYPD employed the aforementioned defendant officers as agents, servants and employees of each of defendants CITY and NYPD who were at all times herein acting within the purpose and scope of such agency and employment and as such the CITY

is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.

42. That by reason of the foregoing, Plaintiff was injured; was rendered sick sore lame and disabled; was and or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief his injuries are permanent in nature and effect.
43. That solely by reason of the above, the Plaintiff has been damaged in an amount equal to or in excess of the jurisdictional limits of this Court .

AS AND FOR A SECOND CAUSE OF ACTION
AS AGAINST DEFENDANTS CITY FOR MONELL
VIOLATIONS OF PLAINTIFFS CIVIL RIGHTS UNDER 42 USC SECTION 1983

44. That the Plaintiff, hereby incorporates by reference each and every preceding paragraphs 1 through 43, of this Complaint as though fully plead and re-alleged in their entirety below.
45. That the Fourth and Fourteenth Amendment of the Constitution of the United States protects the right to be free from unreasonable searches and seizures.
46. That the CITY failed to take the steps necessary to properly train, supervise or otherwise instruct its officers, including but not limited to Police Officer ANGELO, PLUMITALLO and KEEGAN and POLICE OFFICERS JOHN DOES# 1-6 and ASSISTANT DISTRICT ATTORNEY NATALIE RIOS, ASSISTANT DISTRICT ATTORNEY JENNIFER DARIN, and ASSISTANT DISTRICT ATTORNEY COREY JONES in the proper manner of making arrests and prosecuting same; in the proper and strict adherence to their anti-racist, moral and professional obligations to intervene to stop the same where such improper arrest is being made in their presence and in the proper and strict adherence to their duties and obligations not file false criminal charges and thus abuse process to shield themselves from liability as against those individuals who they have knowingly wronged.

47. That for the 2021 New Years day Celebration in New York City the New York City Police Department promulgated and implemented a special policy and policing plans that were unique in its history regarding their annual policing during the New Year's Day celebration events¹
48. That New York City Police Department also had in place at the same time as the subject incident specific policing policies regarding the elimination of gun violence² that they used to tackle and or reduce the threat of gun violence in the five boroughs of New York City.
49. That in May 2020, The NYPD's social distancing practices raised serious concerns for minority New Yorkers.
50. That despite the Remedial orders imposed in *Floyd I* to change the NYPD's stop-and-frisk discriminatory policies, and the protections granted under the Fourth and Fourteenth Amendments, the NYPD continued displaying discriminatory practices and policies which directly impacted people of color.
51. That in an analysis report released by the Brooklyn District Attorney's Office, the report stated that thirty-nine of the forty individuals arrested for violations of social distancing regulations were minorities. The numbers reinforced allegations of racially disparate policing during the pandemic, coupled with viral videos revealing brutal police encounters in response to violations of social distancing regulations.³

¹ <https://abc7ny.com/new-years-eve-nypd-nye-security-ny/9199285/>

² <https://www.criminaljustice.ny.gov/ops/gunviolencereduction/index.htm>; See also <https://www.nyc.gov/site/peacenyc/index.page>

³ 55 UIC L. Rev. 485, 496–97 citing to Jake Offenhartz, “Déjà Vu”: Attorney Say De Blasio's Social Distancing Enforcement is Stop-and-Frisk All Over Again, GOTHAMIST (May 26, 2020), www.gothamist.com/news/d%C3%CA9j%CC3%A0-vu-attorneys-say-de-blasios-social-distancing-enforcement-is-stop-and-frisk-all-over-again [perma.cc/LU78-8AF2]

52. That Public defenders at the Legal Aid Society noted the number of summonses and arrests likely minimizes the level of enforcement in black neighborhoods, emphasizing that *“police have used alleged social distancing infractions as a pretext to arrest people of color for minor offenses, such as marijuana possession.”*
53. That the data available on social distancing enforcement appeared to be reminiscent of unconstitutional stop-and-frisk policies employed by the NYPD, with many individuals in minority communities complaining of the unequal police treatment.
54. That then Mayor De Blasio dismissed claims linking the enforcement of social distancing regulations to former stop-and frisk policy's stating that *“[he's] not going to sacrifice saving lives because people are fearful of something that loomed in the past.”* In agreeance, then NYPD Commissioner Shea maintained that there was no evidence or pattern of disparate impact in social distancing regulations in communities of color, noting that *“the common denominator here is starting with a lack of compliance.”*
55. Furthermore, the City and NYPD leadership demonstrated significant deliberate indifference to the concerns raised by the minority community, the statistical data involving the arrests and summonses within the community, and the viral videos broadcasted on social media displaying blatant police misconduct.⁴
56. That Floyd, et al. v. City of New York, et al. a seminal case against the City of New York was brought to challenge the New York Police Department's practices of racial profiling and unconstitutional stop and frisks of New York City residents. The named plaintiffs in the case

⁴ 55 UIC L. Rev. 485, 504 *citing to* Josiah Bates, *Police Data Reveals Stark Racial Discrepancies in Social Distancing Enforcement Across New York City*, TIME (May 8, 2020), www.time.com/5834414/nypd-social-distancing-arrest-data/.

– David Floyd, David Ourlicht, Lalit Clarkson, and Deon Dennis – represent the thousands of primarily Black and Latino New Yorkers who have been racially targeted by the police.

57. That in a historic ruling on August 12, 2013, following a nine-week trial, a federal judge found the New York City Police Department liable for a pattern and practice of racial policing including but not limited to profiling and unconstitutional stops. Under a new administration, the City agreed to drop its appeal and begin the joint remedial process ordered by the court.

58. That after attempts by the police unions to derail the process, the United States Court of Appeals at last allowed the City to officially withdraw its appeal in October 2014, and the joint reform process – in which all stakeholders, from community groups to the NYPD, come together to agree on solutions – is being mapped out.

59. The Floyd case stems from the landmark racial profiling case, Daniels, et al. v. City of New York, et al., which led to the disbanding of the infamous Street Crime Unit and a settlement with the City in 2003. The Daniels settlement agreement required the NYPD to maintain a written racial profiling policy that complies with the United States and New York State constitutions and to provide stop-and-frisk data on a quarterly basis from 2003 through 2007.

60. That an analysis of this data revealed that the NYPD had continued to engage in suspicionless and racially motivated policing .

61. That Floyd focuses not only on the lack of any reasonable suspicion to make these stops, in violation of the Fourth Amendment, but also on the obvious racial disparities in who is improperly policed by the NYPD – approximately 85 percent of those are Black and Latino, even though these two groups make up only 52 percent of the city’s population – which constitutes a violation of the Equal Protection Clause of the Fourteenth Amendment.

62. That systemic racism is a scientifically tractable phenomenon.

63. That NYPD is permeated by systemic racial policing as a built-in system that undermines life opportunities and outcomes by racial category, with a focus on challenges to Black Americans.
64. That from American colonial history, explicit practices and policies reinforced disadvantage across all domains of life, beginning with slavery, and continuing with vastly subordinated status.
65. That racially motivated and or structurally racist in-built policing creates racial isolation, with disproportionate costs to Black Americans' opportunities, networks, education, wealth, health, and legal treatment.
66. That these institutional and societal systems build-in individual bias and racialized interactions, resulting in systemic racism.
67. That unconscious inferences, empirically established from perceptions onward, demonstrate non-Black Americans' inbuilt associations: pairing Black Americans with negative valences, criminal stereotypes, and low status.
68. That implicit racial biases imbed within non-Black individuals' and those working within such systems, of racialized beliefs, judgments, and affect that predict racialized behavior.
69. That interracial interactions likewise convey disrespect and distrust.
70. That White racial advantages persist in all economic, political, and social domains.
71. That cognitive science has demonstrated that policing is a domain of social behavior that codes in distortions of reality about individual humans and their social groups.
72. That Defendants CITY and NYPD and all their principals, based on the above in-built racial customs and practices thereto knew or should have known to a moral certainty that Police Officer ANGELO, PLUMITALLO and KEEGAN and POLICE OFFICERS JOHN DOES# 1-6 and ASSISTANT DISTRICT ATTORNEY NATALIE RIOS, ASSISTANT

DISTRICT ATTORNEY JENNIFER DARIN, and ASSISTANT DISTRICT ATTORNEY COREY JONES would encounter situations where they would have to make arrests and or prosecutions of persons of color falsely suspected of criminal behavior who were otherwise lawfully abiding denizens of New York City.

73. That the CITY and NYPD enforcement officers responsible for making arrests of such similar situated persons like the Plaintiff have reported in the media that there are structural and racial inadequacies in the policies by which such enforcement officers are trained and managed regarding the arrest of persons of color accused falsely of criminal conduct.
74. That the NYPD Patrol Guide Procedure requires Police Officers to not fabricate false charges against persons of color who they encounter on the streets of New York City who have not committed such crimes.
75. That notwithstanding the NYPD Patrol Guide Procedures on the proper and lawful manner of arresting such similarly situated persons as Plaintiff, the NYPD was and is grossly negligent in training and supervising their own employees and subordinates in the impropriety and illegality of filing of false charges against innocent persons of color traversing upon the streets of the City of New York.
76. That upon Information and belief, the Defendant CITY knew or should have known that their custom and practice of having Police officers, and in particular P.O.'s Angelo, Plumitalo and Keegan, who have extensive histories of unconstitutional conduct toward blacks and minorities, aggressively racially target Blacks and other minorities with racialized policing, would result in conduct inconsistent with constitutional mandates to not make false arrests and file false charges against such falsely arrested persons, from notice of claims, lawsuits, complaints and their own observations that such individual officers because of their improper training and supervision were unfit to be Police Officers, that it was highly likely that they

would commit the alleged acts alleged in the present case, and as such, they exhibited deliberate indifference to the rights of others by failing to act on such information indicating that unconstitutional acts were occurring.

77. That the conduct of the defendants CITY, NYPD and its Police Officers along with individually named defendants ADA's for the KCDAO violated Plaintiff's rights under 42 USC Section 1983, the Fourth and Fourteenth Amendment, the Constitution of the United States and the laws of New York State by failing to properly train, supervise and retrain said Police Officers and individually named defendants ADA's; in failing to adequately discipline the defendant subordinate agents and employees, failing to adequately investigate prior complaints against the defendant subordinate agents and employees, and by acting in a manner which amounted to negligent hiring, training, monitoring and retention of incompetent employees in violation of state and federal law.
78. That the aforementioned individual subject Police Officer and individually named defendants ADA's actions were committed under color of state law and that these acts deprived the Plaintiff of rights, privileges, or immunities secured by the Constitution or laws of the United States.
79. That but for the existing custom, policies and practices detailed above, the aforesaid police officers and individually named defendants ADA's would not have been motivated to act in the unconstitutional manner that they did and that such conduct was a direct result of the unconstitutionality in the implementation and promulgation of such self-same policies, practices and customs of the CITY, NYPD and KCDOA
80. As a direct and proximate result of the misconduct and abuse detailed above, Plaintiff experienced personal and physical injuries, conscious pain, emotional distress, mental anguish, embarrassment, and humiliation.

81. That solely by reason of the above, the Plaintiff has been damaged in an amount equal or in excess of the jurisdictional limits of this Court .

AS AND FOR A THIRD CAUSE OF ACTION
FOR FAILURE TO INTERVENE UNDER 42 USC § 1983 AS AGAINST POLICE
OFFICERS PLUMITALLO and KEEGAN and JOHN DOES #1 through #6

82. The Plaintiff, hereby incorporates by reference each and every preceding paragraph 1-81 of this Complaint as though fully plead and re-alleged in their entirety below.
83. That the Fourth Amendment and fourteenth of the Constitution of the United States protects the right to be free from unreasonable searches and seizures; provides that warrants shall issue only upon probable cause, supported by oath or affirmation.
84. That the Defendants Police Officers PLUMITALLO and KEEGAN and JOHN DOES # 1-6 had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other police officers.
85. That said Defendants failed to intervene to prevent the unlawful conduct described herein.
86. That the aforementioned individual subject JOHN DOE #1-6 defendants actions were committed under color of state law and that these acts “deprived the plaintiff of rights, privileges, or immunities secured by the Constitution or laws of the United States.”
87. That the subject Police Officers who were present while Plaintiff was wrongfully injured by fellow Police officers and failed to intervene to prevent other law enforcement officers from infringing the constitutional rights of citizens are liable under § 1983 as those officer had reason to know: (1) that a false arrest and imprisonment was being made and occurring thereto in their presence, (2) that constitutional violations had been committed by a law enforcement official; and that these officers had a realistic opportunity to intervene to prevent the harm from occurring at all relevant time hereto, Plaintiff is informed and believes and thereon

alleges that defendants CITY and NYPD employed the aforementioned defendant Police officers who were was at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.

88. That as a result of the foregoing, Plaintiff's was unwarrantedly assaulted and battered, suffered abuse of process, false arrest and false imprisonment on a false charge, was maliciously prosecuted and he was put in fear of his safety, and was humiliated and subject to other physical constraints and injuries.
89. By the reason of the foregoing, Plaintiff, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and Plaintiff has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and Plaintiff has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and Plaintiff will be unable to pursue Plaintiff's usual duties with the same degree of efficiency as prior to this occurrence all to Plaintiff's great damage.
90. That solely by reason of the above, the Plaintiff has been damaged in an amount equal or exceed the jurisdictional limits of this Court .

AS AND FOR A FOURTH CAUSE OF ACTION FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS UNDER CIVIL RIGHTS LAW 42 USC §1983 ON BEHALF OF PLAINTIFF AS AGAINST CITY, POLICE OFFICER PLUMITALLO and KEEGAN and JOHN DOES #1 through #6 ASSISTANT DISTRICT ATTORNEY NATALIE RIOS, ASSISTANT DISTRICT ATTORNEY JENNIFER DARIN, and ASSISTANT DISTRICT ATTORNEY COREY JONES.

91. That the Plaintiff hereby incorporates by reference each and every preceding paragraphs 1 through 90, of this civil complaint as though fully plead and re-alleged in their entirety below.
92. That the Fourth and Fourteenth Amendment of the Constitution of the United States protects the right to be free from unreasonable searches and seizures, including intentional acts of violence; provides that warrants shall issue only upon probable cause, supported by oath or affirmation.
93. That the Plaintiff is informed and believes and thereon alleges, that such acts of Defendants CITY, and each of them, including Defendant(s) Police Officers ANGELO, PLUMITALLO and KEEGAN and JOHN DOES #1 through #6 and ASSISTANT DISTRICT ATTORNEY NATALIE RIOS, ASSISTANT DISTRICT ATTORNEY JENNIFER DARIN, and ASSISTANT DISTRICT ATTORNEY COREY JONES as their agents, servants and or employees were intentional, extreme, and outrageous. Plaintiff is further informed and believes and thereon alleges that such actions were done with the intent to cause serious emotional distress or with reckless disregard of the probability of causing Plaintiff serious emotional distress.
94. That the aforementioned individual subject Defendant Police Officer's actions were committed under color of state law and that these acts deprived the plaintiff of rights, privileges, or immunities secured by the Constitution or laws of the United States.
95. At all relevant times hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY, NYPD and the aforementioned defendant Police officers and individually named defendants ADA's as agents, servants and employees of each of defendant CITY were was at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.

96. That as a direct, legal and proximate result of such acts of the said Defendants and each of them, including Defendant(s) P.O ANGELO, PLUMITALLO and KEEGAN and POLICE OFFICERS JOHN DOES# 1-6 and ASSISTANT DISTRICT ATTORNEY NATALIE RIOS, ASSISTANT DISTRICT ATTORNEY JENNIFER DARIN, and ASSISTANT DISTRICT ATTORNEY COREY JONES as their agents, servants and or employees Plaintiff, sustained injuries to various parts of his head, body, limbs and nervous system and, upon information and belief, some of his injuries are of a permanent and/or protracted nature; that by reason thereof, he was confined to hospital, bed and home and prevented from attending to his usual business and/or occupation, and sustained a loss of earnings and he was required and will be required to obtain medical aid and attention in an effort to cure and alleviate his injuries.
97. That solely by reason of the above, the Plaintiff has been damaged in an amount that equals or exceeds the jurisdictional limits of this Court .

AS AND FOR A FIFTH CAUSE OF ACTION
FOR ABUSE OF PROCESS UNDER CIVIL RIGHTS LAW 42 USC §1983 AS AGAINST
DEFENDANTS CITY, ON BEHALF OF PLAINTIFF AS AGAINST CITY, POLICE
OFFICERS ANGELO PLUMITALLO and KEEGAN and P.O. JOHN DOES #1
through #6

98. The Plaintiff hereby incorporates by reference each and every preceding paragraphs 1 through 97 of this Complaint as though fully plead and re-alleged in their entirety below.
99. That the Fourth, Fourteenth and Fifth Amendment of the Constitution of the United States protects the right to be free from unreasonable searches and seizures; wrongful and false charges being filed against persons to deprive them of constitutional protections and provides that warrants shall issue only upon probable cause, supported by oath or affirmation.
100. That the above described actions of the Defendants CITY and NYPD and more specifically, their agents, servants and employees, to wit Police Officers ANGELO, PLUMITALLO and

KEEGAN, and Police Officers JOHN DOES# 1-6 constitutes abuse of process in that these Officers intentionally, willfully, and maliciously fabricated and or failed to prevent the fabrication thereof the aforementioned charges as against Plaintiff with the intent to cover up the above false arrest and assault and battery upon him, among other wrongs, and the defendants knowingly and intentionally abused the process of prosecution in this perverted manner to shield themselves from potential legal action to be taken against them by their employers, to wit Defendant CITY.

101. At all relevant time hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY and NYPD employed the aforementioned defendant Police officers as agents, servants and employees of each of defendants CITY who were was at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.

102. That the aforementioned individual subject individual defendants actions were committed under color of state law and that these acts ‘deprived plaintiff of rights, privileges, or immunities secured by the Constitution or laws of the United States.’”

103. By the reason of the foregoing, Plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and

will be unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence all to his great damage.

104. That solely by reason of the above, the Plaintiff has been damaged in an amount that equals or exceeds the jurisdictional limits of this Court.

AS AND FOR A SIXTH CAUSE OF ACTION
FOR MALICIOUS PROSECUTION UNDER CIVIL RIGHTS LAW 42 USC §1983 AS
AGAINST DEFENDANTS CITY, ON BEHALF OF PLAINTIFF AS AGAINST
CITY, POLICE OFFICER ANGELO, PLUMITALLO and KEEGAN AND
POLICE OFFICERS JOHN DOES# 1-6 and ASSISTANT DISTRICT ATTORNEY
NATALIE RIOS, ASSISTANT DISTRICT ATTORNEY JENNIFER DARIN, and
ASSISTANT DISTRICT ATTORNEY COREY JONES.

105. The Plaintiff hereby incorporates by reference each and every preceding paragraphs 1 through 104 of this Complaint as though fully plead and re-alleged in their entirety below

106. That at all relevant times Police Officer ANGELO, PLUMITALLO and KEEGAN and Police Officers JOHN DOES# 1-6 and ASSISTANT DISTRICT ATTORNEY NATALIE RIOS, ASSISTANT DISTRICT ATTORNEY JENNIFER DARIN, and ASSISTANT DISTRICT ATTORNEY COREY JONES, were agents of the CITY, NYPD and KCD AO and acting within the scope of their duties as law enforcement officers and prosecutors

107. That the CITY by and through its agents, servants and employees, including Defendants Police Officer ANGELO, PLUMITALLO and KEEGAN and Police Officers JOHN DOES# 1-6 along with ASSISTANT DISTRICT ATTORNEY NATALIE RIOS, ASSISTANT DISTRICT ATTORNEY JENNIFER DARIN, and ASSISTANT DISTRICT ATTORNEY COREY JONES, initiated and continued a criminal proceeding against Plaintiff in bad faith, insofar as these police officers, upon information and belief, upon review and investigation of the facts of the within matter became and or were made aware or should have been aware of exculpatory and or exonerating evidence in Plaintiff's favor, preceding the initiation of criminal proceedings, and notwithstanding same pursued and or

initiated his prosecution by presenting incomplete, incorrect information to the CITY

Prosecutors, ASSISTANT DISTRICT ATTORNEY NATALIE RIOS, ASSISTANT

DISTRICT ATTORNEY JENNIFER DARIN, and ASSISTANT DISTRICT ATTORNEY

COREY JONES which, because of the suppression of evidence or other law enforcement

conduct undertaken in bad faith, lacked and was without probable cause

108. That the criminal proceedings and prosecution thereto terminated completely in Plaintiff's favor on or before April 6th 2023

109. That the CITY lacked probable cause to commence and to continue the criminal proceeding against Plaintiff since, at all relevant times, the CITY, including agents Police Officer ANGELO, PLUMITALLO and KEEGAN and Police Officers JOHN DOES# 1-6, as well as ASSISTANT DISTRICT ATTORNEY NATALIE RIOS, ASSISTANT DISTRICT ATTORNEY JENNIFER DARIN, and ASSISTANT DISTRICT ATTORNEY COREY JONES, knew, and or possessed information, that Plaintiff's prosecution for the aforementioned charges lacked probable cause and that defendants could not evince any facts or circumstances which could lead a reasonable person to believe that Plaintiff was guilty of the crimes charged.

110. That the CITY lacked probable cause to commence and to continue the criminal prosecution against Plaintiff.

111. That the Defendants Police Officer ANGELO, PLUMITALLO and KEEGAN, and Police Officers JOHN DOES# 1-6 and ASSISTANT DISTRICT ATTORNEY NATALIE RIOS, ASSISTANT DISTRICT ATTORNEY JENNIFER DARIN, and ASSISTANT DISTRICT ATTORNEY COREY JONES, at all relevant times, were motivated by actual malice.

112. That at all relevant times, the defendants' actions were motivated by bad faith, actual malice, and were not justified, excused or privileged.

113. That the aforementioned individual subject individual defendants actions were committed under color of state law and that these acts 'deprived the Plaintiff of rights, privileges, or immunities secured by the Constitution or laws of the United States.

114. That by the reason of the foregoing, Plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and will be unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence all to his great damage.

115. That solely by reason of the above, the Plaintiff has been damaged in an amount that equals or exceeds the jurisdictional limits of this Court.

AS AND FOR A SEVENTH CAUSE OF ACTION FOR BATTERY UNDER
CIVIL RIGHTS LAW 42 USC §1983
ON BEHALF OF PLAINTIFFS AGAINST CITY AND POLICE OFFICERS ANGELO,
PLUMITALLO and KEEGAN AND POLICE OFFICERS JOHN DOES# 1-6

116. The Plaintiff hereby incorporates by reference each and every preceding paragraphs 1 through 115, of this civil complaint as though fully plead and re-alleged in their entirety below.

117. That the Fourth and Fourteenth Amendment of the Constitution of the United States protects the right to be free from unreasonable searches and seizures; provides that warrants shall issue only upon probable cause, supported by oath or affirmation.

118. That at all relevant times as set forth herein, Defendants CITY, and each of them, including Defendant(s) Police Officer ANGELO, PLUMITALLO and KEEGAN and Police Officer

JOHN DOES# 1-6 as their agents, servants and or employees, intended to cause and did cause harmful, unwanted, unwelcome contact with Plaintiff's person.

119. That Plaintiff did not consent to the defendant(s), and each of them, their agents, servants and/or employees' acts.

120. That at all relevant time hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY and NYPD employed the aforementioned defendant officers as agents, servants and employees who were was at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.

121. That the aforementioned individual subject individual defendants actions were committed under color of state law and that these acts 'deprived plaintiff of rights, privileges, or immunities secured by the Constitution or laws of the United States.'"

122. That as a result of these intentional acts of the defendant(s), and each of them, their agents, servants and/or employees, the Plaintiff,, sustained injuries to various parts of his head, body, limbs and nervous system and, upon information and belief, some of his injuries are of a permanent and/or protracted nature; that by reason thereof, he was confined to hospital, bed and home and prevented from attending to his usual business and/or occupation, and sustained a loss of earnings and he was required and will be required to obtain medical aid and attention in an effort to cure and alleviate his injuries.

123. That solely by reason of the above, the Plaintiff has been damaged in an amount that equals or exceeds the jurisdictional limits of this Court

AS AND FOR A EIGHTH CAUSE OF ACTION
FOR ASSAULT UNDER CIVIL RIGHTS LAW 42 USC §1983
ON BEHALF OF PLAINTIFF AS AGAINST CITY, POLICE OFFICER ANGELO, PLUMITALLO
and KEEGAN AND POLICE OFFICERS JOHN DOES# 1-6

124. The Plaintiff hereby incorporates by reference each and every preceding paragraphs 1 through 123, of this civil complaint as though fully plead and re-alleged in their entirety below.

125. That the Fourth and Fourteenth Amendment of the Constitution of the United States protects the right to be free from unreasonable searches and seizures.

126. That all relevant times set forth herein Defendants CITY and NYPD and each of them, including Defendant(s) Police Officer ANGELO, PLUMITALLO and KEEGAN and Police Officers JOHN DOES# 1-6 as their agents, servants and or employees, intended to cause and did cause the Plaintiff to fear an imminent threat of harm and or harmful contact with Plaintiff's person.

127. That Plaintiff did not consent to the defendants, and each of them, their agents, servants and/or employees act.

128. At all relevant time hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY and NYPD employed the aforementioned defendant officers as agents, servants and employees who were was at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.

129. That the aforementioned individual subject individual defendants actions were committed under color of state law and that these acts deprived Plaintiff of rights, privileges, or immunities secured by the Constitution or laws of the United States.

130. That as a result of these intentional acts of the Defendants, and each of them, their agents, servants and/or employees, the Plaintiff sustained injuries to various parts of his head, body, limbs and nervous system and, upon information and belief, some of his injuries are of a permanent and/or protracted nature; that by reason thereof, he was confined to hospital, bed and home and prevented from attending to his usual business and/or occupation, and sustained

a loss of earnings and he was required and will be required to obtain medical aid and attention in an effort to cure and alleviate his injuries.

131. That solely by reason of the above, the Plaintiff has been damaged in an amount that equals or exceeds the jurisdictional limits of this Court

AS AND FOR AN NINTH CAUSE OF ACTION
FOR DENIAL OF RIGHT TO A FAIR TRIAL UNDER CIVIL RIGHTS LAW 42 USC §1983
ON BEHALF OF PLAINTIFF AS AGAINST CITY, POLICE OFFICER ANGELO, PLUMITALLO
and KEEGAN AND POLICE OFFICERS JOHN DOES# 1-6

132. The Plaintiff hereby incorporates by reference each and every preceding paragraphs 1 through 131, of this civil complaint as though fully plead and re-alleged in their entirety below.

133. That the Fourth and Fourteenth Amendment of the Constitution of the United States protects the right to be free from unreasonable searches and seizures; provides that warrants shall issue only upon probable cause, supported by oath or affirmation

134. That all relevant times set forth herein Defendants CITY and NYPD and each of them, including Defendant(s) Police Officer ANGELO, PLUMITALLO and KEEGAN and Police Officers JOHN DOES# 1-6 as their agents, servants and or employees, did deprive Plaintiff of his civil, constitutional and statutory rights under color of law and is liable to Plaintiff under 42 USC 1983.

135. That all relevant times set forth herein Defendants CITY and NYPD and each of them, including Defendant(s) Police Officer ANGELO, PLUMITALLO and KEEGAN and Police Officers JOHN DOES# 1-6 as their agents, servants and or employees, did deprive of his right to a fair trial, pursuant to the Sixth and Fourteenth Amendments to the United States Constitution.

136. That all relevant times set forth herein Defendants CITY and NYPD and each of them, including Defendant(s) Police Officer ANGELO, PLUMITALLO and KEEGAN and Police

Officers JOHN DOES# 1-6 as their agents, servants and or employees, created false information likely to influence a jury's decision and then forwarded that information to prosecutors, resulting in Plaintiff suffering a deprivation of liberty and a violation of his rights.

137. At all relevant time hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY and NYPD employed the aforementioned defendant officers as agents, servants and employees who were was at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.

138. Plaintiff has been damaged as a result of said defendants actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

AS AND FOR A TENTH CAUSE OF ACTION FOR A PENDENT STATE CLAIM FOR MALICIOUS PROSECUTION ON BEHALF OF PLAINTIFF AS AGAINST CITY, POLICE OFFICER ANGELO, PLUMITALLO and KEEGAN AND POLICE OFFICERS JOHN DOES# 1-6 and ASSISTANT DISTRICT ATTORNEY NATALIE RIOS, ASSISTANT DISTRICT ATTORNEY JENNIFER DARIN, and ASSISTANT DISTRICT ATTORNEY COREY JONES.

139. The Plaintiff, hereby incorporates by reference each and every preceding paragraph, numbered 1 through 138, of this Complaint as though fully plead and re-alleged in their entirety below.

140. That all relevant times set forth herein Defendants CITY and NYPD and each of them, including Defendant(s) Police Officer ANGELO, PLUMITALLO and KEEGAN, and Police Officers JOHN DOES# 1-6 and ASSISTANT DISTRICT ATTORNEY NATALIE RIOS, ASSISTANT DISTRICT ATTORNEY JENNIFER DARIN, and ASSISTANT DISTRICT ATTORNEY COREY JONES, as their agents, servants and or employees did commence a criminal proceeding against the Plaintiff, that the same prosecution terminated in Plaintiff's

favor, and that there was an absence of a reasonable finding of both probable cause and actual malice to initiate such same criminal proceeding against the Plaintiff.

141. At all relevant time hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY, NYPD and KCDAO employed the aforementioned defendant officers and ADA's as agents, servants and employees who were was at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.

142. That by reason of the aforesaid unlawful and malicious prosecution and criminal charges and hearings, the Plaintiff was deprived of his liberty, was subjected to great indignity, pain, humiliation, and great distress of mind and body and was held up to scorn and ridicule, was injured in character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said Plaintiff has been otherwise damaged.

143. That by reason of the aforesaid, the Plaintiff was injured in Mind and Body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

144. Plaintiff has been damaged as a result of said defendants actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

AS AND FOR A ELEVENTH CAUSE OF ACTION FOR PENDENT STATE CLAIM FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS ON BEHALF OF PLAINTIFF AS AGAINST CITY, POLICE OFFICER ANGELO, PLUMITALLO and KEEGAN AND POLICE OFFICERS JOHN DOES# 1-6 ASSISTANT DISTRICT ATTORNEY NATALIE RIOS, ASSISTANT DISTRICT ATTORNEY JENNIFER DARIN, and ASSISTANT DISTRICT ATTORNEY COREY JONES.

145. The Plaintiff hereby incorporates by reference each and every preceding paragraphs 1 through 144, of this civil complaint as though fully plead and re-alleged in their entirety below.

146. Plaintiff is informed and believes and thereon alleges, that such acts of Defendants CITY, and NYPD and KC each of them, including Defendant(s) Police Officer ANGELO, PLUMITALLO and KEEGAN and Police Officers JOHN DOES# 1-6 and ASSISTANT DISTRICT ATTORNEY NATALIE RIOS, ASSISTANT DISTRICT ATTORNEY JENNIFER DARIN, and ASSISTANT DISTRICT ATTORNEY COREY JONES as their agents, servants and or employees were intentional, extreme, and outrageous. Plaintiff is further informed and believes and thereon alleges that such actions were done with the intent to cause serious emotional distress or with reckless disregard of the probability of causing Plaintiff serious emotional distress.

147. At all relevant times hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY, NYPD and KCDAO employed the aforementioned defendant officers as agents, servants and employees of each of defendants CITY, NYPD and KCDAO who were was at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.

148. That as a direct, legal and proximate result of such acts of the Defendants and each of them, including Defendant(s) Police Officer ANGELO, PLUMITALLO and KEEGAN and Police Officers JOHN DOES# 1-6 and ASSISTANT DISTRICT ATTORNEY NATALIE RIOS, ASSISTANT DISTRICT ATTORNEY JENNIFER DARIN, and ASSISTANT DISTRICT ATTORNEY COREY JONES as their agents, servants and or employees Plaintiff, sustained injuries to various parts of his head, body, limbs and nervous system and, upon information and belief, some of his injuries are of a permanent and/or protracted nature; that by reason thereof, he was confined to hospital, bed and home and prevented from attending to his usual business and/or occupation, and sustained a loss of earnings and

he was required and will be required to obtain medical aid and attention in an effort to cure and alleviate his injuries.

149. Plaintiff has been damaged as a result of said defendants actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

AS AND FOR A TWELFTH CAUSE OF ACTION
FOR A STATE CLAIM FOR FAILURE TO INTERVENE AS AGAINST POLICE
OFFICERS PLUMITALLO, KEEGAN and JOHN DOES# 1-6

150. The Plaintiff, hereby incorporates by reference each and every preceding paragraph 1 through 149 of this Complaint as though fully plead and re-alleged in their entirety below.

151. That the Defendant individual Police Officers PLUMITALLO and KEEGAN JOHN DOES# 1-6 had an affirmative duty to intervene on behalf of PLAINTIFF, whose constitutional rights were being violated in their presence by other police officers.

152. That said Defendants failed to intervene to prevent the unlawful conduct described herein.

153. That at all relevant time hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY and NYPD employed the aforementioned defendant officers as agents, servants and employees of each of defendants CITY and NYPD who were was at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.

154. That as a result of the foregoing, Plaintiff's was unwarrantedly assaulted and battered, suffered, abuse of process, false arrest and false imprisonment on a false charge and malicious prosecution, among others, and he was put in fear of his safety, and he was humiliated and subject to other physical constraints and injuries.

155. By the reason of the foregoing, Plaintiff, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical

pain and emotional upset, some of which injuries are permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and Plaintiff has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and Plaintiff has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and Plaintiff will be unable to pursue Plaintiff's usual duties with the same degree of efficiency as prior to this occurrence all to Plaintiff's great damage.

156. Plaintiff has been damaged as a result of said defendants actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
FOR PENDENT STATE CLAIM FOR NEGLIGENCE IN HIRING AND RETAINING
AS AGAINST DEFENDANT CITY

157. The Plaintiff, hereby incorporates by reference each and every preceding paragraphs 1 through 156, of this Complaint as though fully plead and re-alleged in their entirety below.

158. That the Defendants Police Officer ANGELO, PLUMITALLO and KEEGAN and Police Officers JOHN DOES# 1-6 lacked the experience, deportment and ability to be employed by Defendants CITY and NYPD; in that Defendants CITY failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant employees, including but not limited to Defendant Police Officer ANGELO, PLUMITALLO and KEEGAN and Police Officers JOHN DOES# 1-6 who lacked the mental capacity and the ability to function as employees of Defendants CITY; in that the defendant police officer, lacked the maturity, sensibility and intelligence to be employed by Defendant CITY, in that Defendants CITY knew of the lack of ability, experience, deportment and maturity of said defendant employees when they hired them to be employees as police officers; and, in that

Defendants CITY , its agents, servants and/or employees were otherwise careless, negligent and reckless by hiring the Defendants Police officers

159. That Defendants CITY and knew, or should have known in the exercise of reasonable care, the propensities of the subject Defendant Police Officers to engage in the wrongful conduct heretofore alleged in this Complaint.

160. That Defendants CITY their agents, servants and employees in their failure exercise reasonable care to hire and retain, did act willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the State of New York including, in this instance, Plaintiff.

161. That the Defendants, CITY, was careless and reckless in hiring and retaining its employees, to wit Police Officers CLARKE, CHIRIBOGA and Police Officer JOHN DOES# 1-6 in that said Defendants lacked the experience deportment and ability to be employed by the defendant CITY.

162. That the Defendants CITY failed to exercise due care and caution in its hiring and retaining practices, and in particular, in hiring and retaining the Defendant police officer employees who lacked the mental capacity and the ability to function as an employee of the aforementioned Defendant; and in that they hired and retained as an employee of their police department individuals whose backgrounds contained information (based upon information and belief) that revealed said Defendant employees lacked the maturity, sensibility, and intelligence to be employed by the Defendant CITY; in that the Defendants CITY knew of the lack of ability, experience, deportment and maturity of said Defendant employees when they hired them to be employees; and, in that the Defendant CITY their agents, servants and employees were otherwise careless, negligent, and reckless.

163. That the aforesaid occurrence, to wit, the improper and unreasonable hiring and retaining of Police Officer employees resulted in, battery, assault, false arrest and imprisonment and other wrongs, resulting injuries to Plaintiff's mind and body therefrom were caused wholly and solely by reason of the negligence in the hiring and retention of the Defendant, its agents, servants and employees without any negligence on the part of Plaintiff.

164. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and she was rendered emotionally and mentally distressed and so remains.

165. Plaintiff has been damaged as a result of said defendants actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
FOR STATE CLAIM FOR NEGLIGENCE IN TRAINING AND SUPERVISING
AGAINST DEFENDANT CITY

166. The Plaintiff, hereby incorporates by reference each and every preceding paragraphs 1 through 165, of this Complaint as though fully plead and re-alleged in their entirety below.

167. That the Defendants Police Officer ANGELO, PLUMITALLO and KEEGAN and Police Officer JOHN DOES# 1-6 being employees of the Defendant CITY, were negligently trained and supervised in the performance of their duties in that Defendant CITY failed to exercise due care and caution in its training and supervising practices that would have prevented the subject Officers involved in the subject arrest herein from assaulting, battering, falsely arresting and imprisoning and or detaining Plaintiff and filing false charges against him, among other wrongs.

168. Defendants CITY knew, or should have known in the exercise of reasonable care, that the training and supervision of such Defendants to wit, Police Officer ANGELO, PLUMITALLO and KEEGAN and Police Officer JOHN DOES# 1-6 was inadequate and

insufficient to prevent the same from engaging in the wrongful conduct heretofore alleged in this Complaint.

169. That Defendants CITY, their agents, servants and employees in their failure to exercise reasonable care to train and supervise, did act willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the State of New York including, in this instance, the Plaintiff.

170. That the Defendants, CITY was careless and reckless in its training and supervising of its employees, to wit, Police Officer ANGELO, PLUMITALLO and KEEGAN and Police Officer JOHN DOES# 1-6 in that said Defendants knew and or should have known that assaulting, battering,, filing false charges, abusing process and other wrongful conduct described above was unlawful and wrong and should not have engaged in such wrongful and or unlawful conduct.

171. That the Defendant CITY failed to exercise due care and caution in its training and supervising practices, and in particular, in hiring and retaining the Defendant employees who lacked the mental capacity and the ability to function as an employee of the aforementioned Defendant; and in that it hired and retained as its employees, individuals whose backgrounds contained information (based upon information and belief) that revealed said Defendants lacked the maturity, sensibility, and intelligence to be employed by the Defendants CITY; in that the Defendants CITY knew of the lack of ability, experience, deportment and maturity of said Defendant employees when they hired them to be employee; and, in that the Defendants CITY, their agents, servants and employees were otherwise careless, negligent, and reckless.

172. That the aforesaid occurrence, to wit, the improper and unreasonable training and supervising employees resulted in the assault, battery, false arrest and imprisonment, abuse of process, malicious prosecution, failure to intervene, among other wrongs, and resulting injuries to mind and body therefrom were caused wholly and solely by reason of the negligence of the Defendants CITY, its agents, servants and employees without any negligence on the part of Plaintiff.

173. That by reason of the aforesaid, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

174. Plaintiff has been damaged as a result of said defendants actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

AS AND FOR A FIFTEENTH CAUSE OF ACTION
FOR PENDENT STATE CLAIM FOR ABUSE OF PROCESS AS AGAINST
DEFENDANTS CITY, POLICE OFFICER ANGELO, PLUMITALLO and
KEEGAN AND POLICE OFFICERS JOHN DOES# 1-6

175. The Plaintiff hereby incorporates by reference each and every preceding paragraphs 1 through 174 of this Complaint as though fully plead and re-alleged in their entirety below.

176. hat the above described actions of the Defendants CITY and more specifically, their agents, servants and employees, to wit Police Officer AVENGER and Police Officer JOHN DOES# 1-6 constitutes abuse of process in that these Officers intentionally, willfully, and maliciously fabricated criminal charges as against Plaintiff with the intent to cover up the above described false arrest and imprisonment, assault and battery upon him, and the defendants knowingly and intentionally abused the process of prosecution in this perverted manner to shield themselves from potential legal action to be taken against them by their employers, to wit Defendant CITY.

177. At all relevant time hereto, Plaintiff is informed and believes and thereon alleges that the defendant CITY and NYPD employed the aforementioned defendant Police officers as agents, servants and employees of each of defendants CITY who were was at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.

178. By the reason of the foregoing, Plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and will be unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence all to his great damage.

179. Plaintiff has been damaged as a result of said defendants actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

WHEREFORE, the Plaintiff demand judgment against the defendants in an amount exceeding the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction, in an amount to be determined upon the trial of this action, together with the costs and disbursements of this action and any other such relief as this honorable Court may deem just, fair and proper, to wit.

- a. Compensatory damages in the sum which equals or exceeds the jurisdictional limits this Court
- b. Punitive damages where permitted in the sum which exceeds the jurisdictional limits of this Court.

- c. Pursuant to §1988 An award of reasonable attorney's fees, costs and disbursements;
- d. Plaintiff requests a trial by jury of all issues involved in this complaint;
- e. Such other and further relief as this Court may deem just, meet and proper under the circumstances.

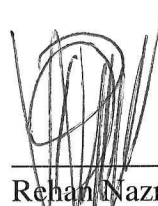
Dated: New York New York
December 27, 2023

_____/S/_____
REHAN NAZRALI, Esq.
299 Broadway, 17th Floor
New York, NY 10007
Tel: 646-331-9378

ATTORNEY VERIFICATION

REHAN NAZRALI, ESQ., an attorney admitted to practice in the courts of New York State, states as follows: I am attorney of record for the Plaintiffs, to wit, LANCELOT MORRISON in the within Summons and Complaint, I have read the foregoing **Summons and Complaint** and know the contents thereof; the same is true to my own knowledge, except as to those matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason this verification is made by me and not by the Plaintiffs does not reside in the county where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are information contained in the file and communications with my client(s). I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
December 27, 2023



Rehan Nazrali, Esq.
299 Broadway, 17th Floor
New York, NY 10007
(646)331-9378